



Forthcoming judgments and decisions

The European Court of Human Rights will be notifying in writing 15 judgments on Tuesday 11 December 2018 and 36 judgments and / or decisions on Thursday 13 December 2018.

Press releases and texts of the judgments and decisions will be available at 10 a.m. (local time) on the Court's Internet site (www.echr.coe.int)

Tuesday 11 December 2018

[Kryževičius v. Lithuania \(application no. 67816/14\)](#)

The applicant, Donatas Kryževičius, is a Lithuanian national who was born in 1983 and lives in Palanga (Lithuania).

The case concerns the Lithuanian authorities' efforts to compel Mr Kryževičius to give testimony in criminal proceedings in which his wife had the status of a "special witness", and his subsequent inability to appeal to a higher court the fine resulting from his refusal to do so.

In 2012, Mr Kryževičius's wife provided accountancy services to company M on behalf of company A. Mr Kryževičius was the Director of this latter company, and his wife was the Financial Director. The Director of company M made a complaint to the police in which he alleged that the applicant's wife, during her work for him, had unlawfully transferred funds from his business to other companies, including company A. The police opened a pre-trial investigation in November 2013.

In December of that year, the applicant's wife was granted "special witness" status. This status allows prosecutors to question, as a witness, people who might give testimony about their own possible criminal activity.

On 9 April 2014, Mr Kryževičius was called as a witness. He refused to testify on the subject of his wife's actions and the payment to company A and was fined. He contested this fine with a senior prosecutor and with a district court, arguing that the relevant legal provision allowing family members of a suspect to refuse to testify also applied to the family of special witnesses, but his complaints were dismissed. The decision of the district court was final.

Relying in particular on Article 8 (right to respect for private and family life) of the European Convention on Human Rights, Mr Kryževičius complains that the authorities violated his right to family life by requiring him to testify against his wife. He also complains of a violation of his right of appeal in criminal matters, as guaranteed by Article 2 of Protocol No. 7 to the Convention, since he was unable to appeal to a higher court the fine incurred as a result.

[M.A. and Others v. Lithuania \(no. 59793/17\)](#)

The first two applicants, Mr M.A. and Ms M.A., are Russian nationals who were born in 1988 and 1994, respectively. The remaining applicants, also Russian nationals, are their five children, all of whom were born between 2010 and 2016. All seven applicants currently live in Poland.

The case concerns the family's three unsuccessful efforts to lodge asylum applications on the Lithuanian border.

On three occasions in April and May 2017, the applicants attempted to gain entry into Lithuania at three different border crossing points. According to the applicants, on each of these occasions they explained to the Lithuanian border guards that they were seeking asylum, as a result of torture and

persecution which Mr M.A. had suffered in Chechnya. On each occasion, they were refused entry without any asylum proceedings being initiated and were returned to Belarus. None of the decisions or reports issued by border guards referred to the applicants' wish to seek asylum. The applicants did not appeal against the border authorities' decisions.

Relying on Article 3 of the Convention, the applicants complain that the Lithuanian border authorities violated their right not to suffer torture or inhuman or degrading treatment. Specifically, they contend that, in denying them access to the asylum procedure, the border authorities returned them to a country from which it was likely that they would be repatriated to Chechnya, where they were in turn likely to suffer treatment prohibited under Article 3.

Relying on Article 13 of the Convention, the applicants also complain that they did not have recourse to an effective remedy against the decisions to deny them access to the asylum procedure because an appeal against the decision to refuse entry did not have automatic suspensive effect.

[Brisc v. Romania \(no. 26238/10\)](#)

The applicant, Ioan-Vasile Brisc, is a Romanian national who was born in 1963 and lives in Baia Mare (Romania).

The case concerns his complaint that he was removed from his position as chief prosecutor for breaching the secrecy of a criminal investigation when he made statements to the press.

Mr Brisc was chief prosecutor attached to Maramureş County Court in 2008 when the prosecutor's office carried out an operation to catch an individual accepting money in exchange for the conditional release of a detainee in Baia-Mare Prison.

Mr Brisc, the member of staff designated to provide information to the press, later confirmed in a press release that the suspect had "told the detainee that part of the money was to go to the magistrates, judges and prosecutors responsible for the conditional release of detainees." He also gave a short interview to a local television channel.

Disciplinary proceedings were brought against Mr Brisc at the instigation of the judge delegated at the time to Baia-Mare Prison, who chaired the commission for detainees' conditional release. She complained that the press release and interview suggested that she might be the recipient of the money.

In 2009 the disciplinary authorities found that Mr Brisc's press release and television interview had revealed information about a pending investigation and had been disrespectful towards the judge as they had made it possible for the press to identify her with the money scam. As a result of this decision, Mr Brisc was removed from his position as chief prosecutor.

Two of the prosecutors on the disciplinary commission opposed reprimanding Mr Brisc, as did one of the judges on the panel of the High Court of Cassation and Justice when dismissing his subsequent appeal on points of law. They considered that it was not Mr Brisc who had made defamatory statements about the judge, but the newscaster of his television interview. The newscaster had in particular referred to the judge's assignment to the prison ending on the day of the prosecutor's operation, questioning whether this could have been "purely coincidence".

Relying on Article 10 (freedom of expression), Mr Brisc complains about his removal as chief prosecutor for imparting information to the press.

[Rodionov v. Russia \(no. 9106/09\)](#)

The applicant, Igor Nikolayevich Rodionov, is a Russian national who was born in 1970 and lives in Sosnoviy Bor (Russia).

The case concerns Mr Rodionov's arrest, pre-trial detention and sentencing to 12 years' imprisonment for drug trafficking.

Relying on Article 3 (prohibition of inhuman or degrading treatment) and Article 13 (right to an effective remedy), Mr Rodionov complains about his conditions of detention in prison no. IZ-47/1 in St Petersburg, the conditions in which he was transferred to and from the Kirovsky District Court, and his conditions of detention on the court premises. He also complains about being placed in a metal cage in the courtroom during his trial. Lastly, he alleges a lack of effective remedies in respect of these complaints.

Under Article 5 §§ 3 and 4 (right to liberty and security/right to a speedy decision on the lawfulness of detention), the applicant complains about the length of his pre-trial detention and alleges that his application for release was not examined “speedily”. He also complains of the fact that a hearing before the St Petersburg City Court was held in his absence and without his being informed.

Relying on Article 6 (right to a fair trial), he complains about several aspects of the criminal proceedings against him, which he regards as unfair, and of a breach of his right to be presumed innocent.

Under Article 8 (right to respect for private and family life) and Article 13 (right to an effective remedy), Mr Rodionov alleges an infringement of his right to private life and correspondence on account of the interception and recording of his telephone conversations, which were admitted in evidence in the criminal proceedings. He also alleges a lack of effective remedies by which to assert that complaint.

Relying on Article 10 (freedom of expression), he complains of a breach of his right to receive information on account of the seizure by the prison authorities of the newspapers and magazines sent to him by family members and of a radio that had been in his possession.

Under Article 34 (right of individual petition), he complains that the prison authorities opened the letter from the Registry of the European Court of Human Rights acknowledging receipt of his application form.

[Dimović and Others v. Serbia \(no. 7203/12\)](#)

The applicants, Atila Dimović, Marijano Dimović and Tihomir Hajnal, are Serbian nationals who were born in 1985, 1988 and 1985, respectively.

The case concerns the three applicants’ allegation that their convictions for burglary and robbery were unfair.

The applicants were convicted in March 2009 on the basis of, among other evidence, a statement made by R.K., one of their co-accused, during the pre-trial investigation. His statement incriminated them in stealing a combine-harvest radiator, a portable water hose, a tamburitza (a string instrument popular in Southern Europe) and 60 euros from a man’s home near Subotica (Serbia). R.K.’s case had been severed from the applicants’ because he had fallen ill before the beginning of the trial and died shortly afterwards.

The trial court sentenced Atila Dimović and Mr Hajnal to eight and a half years’ imprisonment, while Marijano Dimović was sentenced to five and a half years’ imprisonment.

The applicants argued, unsuccessfully, both before the Court of Appeal and the Constitutional Court that R.K.’s statement should not have been admitted because he could not be cross-examined in court.

In particular, the appeal court found the admission of R.K.’s evidence to be lawful because he had made his statement in the presence of his counsel who had shortly afterwards become counsel for the applicants. The court did however acknowledge that the sole evidence against Atila Dimović had been R.K.’s statement and that the only evidence corroborating that statement as concerned the other two applicants had been, firstly, a witness stating at trial that he had heard two men on a local bus plotting to steal a violin from the home of a musician and, secondly, DNA evidence matching Mr

Hajnal's profile in a car found abandoned near the robbery victim's home, with the stolen items left not far from the car.

Relying on Article 6 §§ 1 and 3 (d) (right to a fair trial and right to obtain attendance and examination of witnesses), the applicants allege that their convictions were solely or mainly based on R.K.'s statement, despite the fact that they were not able to question him at any stage of the proceedings.

[Lakatošová and Lakatoš v. Slovakia \(no. 655/16\)](#)

The applicants, Žaneta Lakatošová and Kristián Lakatoš, a married couple, are Slovak nationals of Roma origin who were both born in 1986. They live in Hurbanovo (Slovakia), a town where around a thousand Roma people live.

The case concerns a shooting spree by an off-duty police officer at the applicants' home, seriously injuring them and killing three members of their family.

On 16 June 2012 Mr J., a municipal police officer, drove to the applicants' home town, entered their property and, without saying a word, started shooting at members of the family who happened to be in the yard. He was not on duty and used an illegally purchased gun. Mr Lakatoš's father, brother and brother-in-law were killed.

Mr J. was arrested and the police immediately conducted a preliminary investigation. They questioned in particular Mr J. and other witnesses as to whether there was a possible racist background to the attack. Mr J. stated that he had driven to the applicants' house to "deal with" the Roma, and confirmed that he had been thinking about a "radical solution". His relatives and colleagues denied that he was biased against Roma. The victims' relatives stated that they were not aware of any conflict between Mr J. and their family.

Two psychologists were also appointed to examine Mr J. They established that Mr J. had suffered from a temporary mental disorder at the time of the assault and concluded that the immediate motive for it was not clear, but that Mr J.'s continual frustration with his work and inability to resolve public order issues concerning Roma could have been behind it. The experts also referred to an incident shortly before the attack when Mr J. had been aggressive towards some Roma boys who had been caught stealing.

In December 2012 Mr J. was charged with premeditated first-degree murder and carrying a concealed weapon. The bill of indictment identified one aggravating factor, namely that the attack had been against five people.

The case went to trial before the Special Criminal Court and a hearing took place in March 2013. The applicants' lawyer attempted to question witnesses about a possible racist motive for the attack, but was not allowed to pursue this line of questioning because the applicants were civil parties to the proceedings and as such could only raise issues concerning their claim for damages.

Mr J. was found guilty as charged by way of a simplified judgment, without any legal reasoning, which was made possible because both the prosecution and the defence had waived their right of appeal. Mr J. was given a reduced sentence of nine years' imprisonment owing to diminished responsibility. The applicants' appeals were subsequently dismissed as was their constitutional complaint.

The applicants withdrew their civil claim for damages in 2016. In the meantime the Minister of Justice had awarded them compensation.

Relying on Article 14 (prohibition of discrimination) read in conjunction with Article 2 (right to life), the applicants essentially complain that the Slovakian authorities failed to conduct an effective investigation into whether the attack on their family had racial overtones.

[Belli and Arquier-Martinez v. Switzerland \(no. 65550/13\)](#)

The applicants, Annick Marcelle Belli and Christiane Arquier-Martinez, are Swiss nationals who were born in 1962 and 1939 respectively and live in Armação dos Buzios (Brazil). Ms Belli is Mrs Arquier-Martinez's daughter.

The case concerns the decision taken in respect of Ms Belli, who is deaf, discontinuing her entitlement to a special invalidity benefit and a disability allowance on the grounds that she was no longer resident in Switzerland.

Relying on Article 14 (prohibition of discrimination) taken together with Article 8 (right to respect for private and family life), the applicants allege that the requirement to be resident in Switzerland is directly connected to the nature of Ms Belli's disability. They maintain that the decisive criterion for entitlement to the benefits in question, namely residence in Switzerland, is tied in discriminatory fashion to the fact that Ms Belli has been disabled from birth, unlike disabled persons who have been able to contribute to the scheme and whose benefits are payable abroad.

Under Article 8 (right to respect for private and family life), the applicants allege that the family ties between them are extremely strong and that if the benefits in question were stopped Ms Belli would be obliged to return to live in Switzerland, far away from her family, or her mother would have to leave her husband behind in Brazil in order to follow her there.

[B.I. v. Turkey \(no. 18308/10\)](#)

The applicant, B.I., is a Turkish national who was born in 1986 and lives in Ankara.

The case concerns a conscript who had serious health problems during his military service.

In May 2006 B.I. joined the training unit of the Kayseri first commando regiment for a three-month period. During a medical consultation doctors at the barracks diagnosed him with a haemorrhoid condition. In August 2006, at the end of his training period, B.I. was taken to Diyarbakır Military Hospital because of a worsening of his symptoms. On 1 September 2006 he underwent a haemorrhoid removal operation in Siirt Military Hospital. He was placed on sick leave for three months and returned to his home in Ankara. Shortly afterwards, suffering from pain and worsening health, he reported twice to the emergency department of Gülhane Military Hospital (GATA). His sick leave was extended and he was admitted to hospital twice. On 26 July 2007 B.I. was examined by the GATA medical board, which decided to postpone his military service.

B.I. lodged a claim of pecuniary and non-pecuniary damage with the Ministry of National Defence, which rejected it. He brought an action for compensation before the Supreme Military Administrative Court, seeking 140,000 Turkish lira for all heads of damage. The court dismissed the action, ruling out any liability, with or without fault, on the part of the administrative authorities. It also rejected his application for rectification of that judgment.

Relying on Article 2 (right to life), the applicant alleges that his state of health deteriorated because of delays and errors in the medical treatment he received in the military hospitals. He maintains that he was in good health when he was recruited and now has a partial disability.

[Nihat Soylu v. Turkey \(no. 48532/11\)](#)

The applicant, Nihat Soylu, is a Turkish national who was born in 1953 and lives in Istanbul.

The case concerns the death of the applicant's son following an accident at school.

On 22 June 1999 a pole that was not secured to the ground fell on Mr Soylu's son at his primary school. The child was taken to a dispensary where he remained under observation before being sent home. At around 10 p.m., seeing that the child was not well, Mr Soylu took him to Atatürk Public Hospital in Sinop, where a doctor requested a consultation with a general surgeon. The duty surgeon

examined the patient at 8.30 a.m. the following morning, diagnosed a perforation of the internal organs and prescribed surgery. He referred the child to the SSK Hospital in Sinop. At 9.30 a.m. the child was examined in the emergency department of that hospital and was referred to the SSK Hospital in Samsun. From there, he was transferred to Ondokuz Mayıs University Hospital in Samsun, where he underwent emergency surgery at 4 p.m. He died the following day.

On 30 June 1999 Mr Soylu lodged a criminal complaint for manslaughter against the doctor in the dispensary, the doctors at Atatürk Public Hospital and the doctor at the SSK Hospital in Sinop. On 21 March 2007 the Criminal Court struck the case out of its list on the grounds that the prosecution was time-barred. In the meantime, on 9 March 2000, Mr Soylu and his wife brought an action for damages in the Sinop District Court. The court awarded them 2,000 Turkish lira (TRY) in respect of non-pecuniary damage and TRY 15,205 for pecuniary damage, together with default interest. The Court of Cassation quashed the judgment on the grounds that the dispute came within the jurisdiction of the administrative courts. Adhering to the Court of Cassation judgment, the District Court dismissed the applicant's action.

The applicant complains of the ineffectiveness of the domestic remedies and of the length of the criminal proceedings and the proceedings for compensation. He does not rely expressly on any particular provision of the Convention.

[Tülay Yıldız v. Turkey \(no. 61772/12\)](#)

The applicant, Tülay Yıldız, is a Turkish national who was born in 1960 and lives in Istanbul.

The case concerns the death of the applicant's mother from a hospital-acquired infection.

On 17 February 1997 the applicant's mother underwent a coronary angioplasty in the cardiology unit of Siyami Ersek Hospital in Istanbul. She left hospital on 19 February 1997 but was readmitted two days later because of bleeding at the site of the catheter. Her condition deteriorated over the next few days. Bacteriological tests carried out at Kadıköy Vatan Hospital revealed the presence of antibiotic-resistant infectious bacteria. On 14 April 1997 the applicant's mother died of a cerebral embolism.

The deceased's relatives lodged a criminal complaint against the doctors of the cardiology unit in Siyami Ersek Hospital for manslaughter and negligence. At the request of the Istanbul governor's office, the Ministry of Health appointed an inspector to carry out a preliminary investigation. The final report found that the patient and her family had not been adequately informed of the treatment administered and that the post-operative care and medical supervision had been unsatisfactory and constituted a disciplinary offence. However, the report found no grounds for bringing a criminal prosecution against the doctors. On 8 December 1998 the district governor refused to institute criminal proceedings, and on 31 May 2000 the Istanbul Regional Administrative Court upheld that decision.

In the meantime, on 22 September 1998, Mrs Yıldız brought an action for damages against the Ministry of Health in the Istanbul Administrative Court. On 22 February 2001 the court dismissed the action as time-barred. Mrs Yıldız lodged an appeal on points of law and the Supreme Administrative Court quashed the judgment and referred the case back to the Istanbul Administrative Court. On 15 October 2009 the latter dismissed the applicant's claims, basing its decision on the expert reports. Mrs Yıldız lodged an appeal on points of law, arguing that her mother's death had been caused by a hospital-acquired infection and that the hospital was responsible for the situation. On 28 December 2010 the Supreme Administrative Court upheld the impugned judgment. The applicant then lodged an application for rectification, complaining of the length of the proceedings and of the dismissal of her case notwithstanding the medical reports finding that the death had resulted from septicæmia linked to a hospital-acquired infection. That application was likewise dismissed.

Relying on Article 2 (right to life) and Article 6 (right to a fair hearing), the applicant complains about the circumstances of her mother's death and alleges that her case was not given a fair hearing within a reasonable time and that she therefore did not have an effective remedy.

The Court will give its rulings in writing on the following cases, some of which concern issues which have already been submitted to the Court, including excessive length of proceedings.

These rulings can be consulted from the day of their delivery on the Court's online database [HUDOC](#).

They will not appear in the press release issued on that day.

Buttigieg and Others v. Malta (no. 22456/15)

Akçay and Others v. Russia (no. 66729/16)

Yudin v. Russia (no. 9904/09)

Eren and Others v. Turkey (no. 11395/08)

Taşpınar v. Turkey (no. 33683/08)

Thursday 13 December 2018

[Mursaliyev and Others v. Azerbaijan](#) (nos. 66650/13, 24749/16, 43327/16, 62775/16, 68722/16, 76071/16, 8051/17, 8702/17, 12870/17, 21246/17, and 37696/17)

The case concerns travel bans imposed on witnesses in criminal proceedings.

The applicants are 11 Azerbaijani nationals living in Baku and other cities in Azerbaijan.

On different dates between 2012 and 2016 the applicants learned that they were no longer allowed to leave Azerbaijan. The investigation authorities apparently imposed the bans within the framework of various criminal proceedings in which the applicants had been questioned as witnesses, and not as the accused or suspects. The authorities lifted some of the travel bans in 2016.

On various dates the applicants lodged complaints with the courts, claiming that domestic law did not provide for the imposition of travel bans on witnesses in criminal proceedings.

The domestic courts refused to examine all but one of the applicants' complaints on the merits because they did not have competence.

As regards the remaining applicant (in application no. 66650/13) the courts did examine his complaint on the merits, but found that the restriction on his right to leave the country was justified. His appeal was dismissed.

Relying in particular on Article 2 of Protocol No. 4 (right to liberty of movement), all the applicants complain that their right to leave their own country was breached. One of the applicants further alleges that the travel ban prevented him from travelling abroad for an eye operation, in breach of Article 8 (right to respect for private and family life). Relying on Articles 6 (right to a fair trial) or 13 (right to an effective remedy), ten of the applicants also allege that they did not have an effective remedy in respect of the travel bans imposed on them because the domestic courts failed to properly examine their complaints. Lastly, five of the applicants complain under Article 34 (right of individual application) that a letter sent to them by the European Court on their case was delayed, alleging that this must have been because of Government interference with the postal service.

[Dzhioyeva v. Georgia and two other applications \(nos. 24964/09, 20548/09, and 22469/09\)](#)
[Kudukhova and Kudukhova v. Georgia \(nos. 8274/09 and 8275/09\)](#)
[Naniyeva and Bagayev v. Georgia \(nos. 2256/09 and 2260/09\)](#)

The applicants in the first case, Khadizat Dzhioyeva, Irina Kachmazova, and Alina Kachmazova, a mother and her two daughters, are Russian nationals born in 1948, 1990, and 1987. The applicants in the second case are Izolda Kudukhova and Nino Kudukhova, a mother and daughter who are Russian nationals and were born in 1950 and 1988, while the applicants in the third case, Klara Naniyeva and Umar Bagayev, wife and husband, are Russian nationals born in 1952 and 1946.

The cases concern the applicants' allegations that Georgian forces put their lives in danger and caused damage to their property in the town of Tskhinvali during the 2008 conflict in South Ossetia.

The applicants live in Tskhinvali and in August 2008 they became aware that fighting had broken out.

Ms Dzhioyeva (application no. 24964/09) decided to stay in the family's apartment, while her daughters, the other applicants in the first case, left for a village. On 7 August Ms Dzhioyeva was forced to take shelter in the basement of their apartment building after hearing shooting and the sound of heavy artillery. The following day she went back to the apartment to get warm clothing and food and was there when a shell hit the bedroom wall, causing her to go back to the basement. She left Tskhinvali on 10 August and was reunited with her daughters. The family returned to their apartment in September 2008 and saw that their apartment, including furniture, appliances and personal belongings, had been damaged.

The applicants in the second case left Tskhinvali on 5 August 2008 and were eventually moved to Rostov-on-Don in the Russian Federation. When they returned to their home on 30 August 2008, they saw that it had been damaged in an explosion, with the windows and doors having been blown out and the furniture damaged. The first applicant's husband, also the second applicant's father, died in 2009 as a result of the stress suffered during the conflict.

The applicants in the third case took shelter in the basement of their apartment building on 7 August 2008 after hearing almost uninterrupted explosions. They later moved to a house they owned and hid in the basement there, the first applicant in the case suffering distress and fear owing to threats from Georgian soldiers. They left for Vladikavkaz in Russia on 10 August before proceeding to Rostov-on-Don. When they returned later they learnt that their apartment and the house had been completely destroyed, along with all their furniture, appliances, documents and personal belongings.

The applicants raise complaints about the events under Article 2 (right to life), Article 3 (prohibition of inhuman or degrading treatment), Article 1 of Protocol No. 1 (protection of property), Article 13 (right to an effective remedy) in conjunction with Article 3, Article 14 (prohibition of discrimination) in conjunction with Articles 3 and 13, Article 8 (right to respect for private and family life), and Article 5 § 1 (right to liberty and security).

[Casa di Cura Valle Fiorita Srl v. Italy \(no. 67944/13\)](#)

The applicant, Casa di Cura Valle Fiorita S.r.l., is an Italian limited liability company with its registered office in Rome.

The case concerns the applicant company not being able to recover possession of a building in Rome that has been occupied since 2012 without any legal title by a group of housing activists (*movimento lotta per la casa*).

On 6 December 2012 a group of around 100 people forced their way into a building of about 8,000 sq. m in Rome owned by the applicant company, and occupied the premises. The applicant company lodged a criminal complaint with the public prosecutor, alleging an infringement of its property rights and requesting the evacuation of the building. It reiterated its complaint on 11 occasions between 2012 and 2013.

On 9 August 2013 the Rome investigating judge ordered the seizure and evacuation of the building, noting that it was occupied by around 150 people who had started to make alterations to the premises, in particular by putting up fencing to restrict access. In March 2015 the applicant company applied unsuccessfully to the administrative authorities for enforcement of the decision of 9 August 2013. It then applied to the Administrative Court, complaining about the authorities' lack of response. The Prefect of Rome replied that it was necessary to obtain prior guarantees from the municipality of Rome that the persons concerned would be rehoused; in the absence of such guarantees he could not order their eviction.

In the meantime, the Rome District Court served an order on the applicant company for the payment of approximately 30,000 euros in electricity bills for 2013 and 2014. The applicant company also continues to be liable for property tax. In addition, its request for access to the data of the people occupying the building, with a view to bringing a court action against them, was refused by the public prosecutor's office.

Relying on Article 6 § 1 (right of access to a court), the applicant company complains of the failure to enforce the judicial decision of 9 August 2013, alleging that it was not afforded effective judicial protection.

Under Article 1 of Protocol No. 1 (protection of property), the applicant company complains that it has not been able to recover possession of its building, which has been occupied by third parties without any legal title.

Relying on Article 13 (right to an effective remedy), it complains that it did not have an effective remedy by which to secure enforcement of the decision of 9 August 2013.

[Witkowski v. Poland \(no. 21497/14\)](#)

The applicant, Mariusz Witkowski, is a Polish national who was born in 1974 and lives in Wadowice (Poland).

In this case Mr Witkowski complains of a violation of his right of access to a court. He argues that it was impossible for him to appeal against a judgment given against him by the first-instance court in criminal proceedings in which he was charged with unlawful disclosure of information obtained in the performance of his professional duties.

Referring to Article 422 § 1 of the Code of Criminal Procedure – which provides that a request for reasons to be given for a judgment has to be lodged with the court within seven days of delivery of the judgment – the court refused to examine Mr Witkowski's request on the grounds that it had been lodged before the judgment was handed down. Mr Witkowski had lodged his request on 19 March 2013 at 9.40. a.m., whereas the judgment was delivered at 10.45 a.m. the same day.

Mr Witkowski relies on Article 6 § 1 of the Convention (right of access to a court).

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Mohammad v. Denmark (no. 16711/15)

Yurdaer v. Denmark (no. 42517/15)

Pellegrin v. France (no. 74946/14)

Wallace v. France (no. 9793/16)

E.D. v. the Republic of Moldova (no. 25280/16)

Popova v. the Republic of Moldova (no. 29162/14)

A.I. v. the Netherlands (no. 36196/16)

A.S. v. the Netherlands (no. 20102/13)
Herrie v. the Netherlands (no. 44116/12)
W.M. v. the Netherlands (no. 12708/16)
Galkin v. Russia (no. 5497/18)
Kamyshnikov and Gavrilov v. Russia (nos. 24043/09 and 33184/11)
Razigdad v. Russia (no. 30764/13)
Shilova v. Russia (no. 56729/12)
Stepanova v. Russia (no. 21991/09)
H, I and J v. Switzerland (no. 27478/17)
Anşin v. Turkey (no. 49266/06)
Atmış v. Turkey (no. 42710/09)
Beyazkaya v. Turkey (no. 15401/07)
Ekinci and Others v. Turkey (no. 9879/10)
Gül v. Turkey (no. 42702/09)
Güven and Others v. Turkey (nos. 74289/10, 75443/10, 75444/10, 75445/10, 75446/10, 45105/11, 47654/11, 58096/11, 58103/11, and 62277/11)
Kabar v. Turkey (no. 56886/10)
Mutlu v. Turkey (no. 858/07)
Mutlu and Others v. Turkey (no. 16746/10 and 26 other applications)
Mutluay and Eğitim ve Bilim Emekçileri Sendikası (Eğitim-Sen) v. Turkey (no. 81688/12)
Öztürk and Others v. Turkey (no. 2035/10)
Taşdelen v. Turkey (no. 50894/06)
Topalar v. Turkey (no. 31943/08)
Uçar v. Turkey (no. 52109/11)

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The European Court of Human Rights was set up in Strasbourg by the Council of Europe Member States in 1959 to deal with alleged violations of the 1950 European Convention on Human Rights.